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A-124738-5

IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
SIXTH DISTRICT

DONUEL E. BENEDETTO, Petitioner,	L.T. Case No. 2025-CA-009116-O Honorable John D.W. Beamer Orange County

v.

SANDRA E. GONZALEZ REPOLLET, as Personal Representative of the Estate of ELIEZER GONZALEZ SALCEDO, and UTZ QUALITY FOODS, LLC,

Respondents.
_____/

PETITION FOR WRIT OF *CERTIORARI*

COMES NOW, the Petitioner, DONUEL E. BENEDETTO ("Mr. Benedetto"), by and through undersigned counsel, pursuant to Florida Rule of Appellate Procedure Rule 9.100, and hereby files this Petition for Writ of *Certiorari*, and in support thereof states as follows:

I. BASIS FOR INVOKING THE JURISDICTION OF THIS COURT

The above captioned original proceeding is an effort by Mr. Benedetto to have this Court review the order of the Circuit Court in and for Orange County, Florida, which had the effect of compelling

the production of Mr. Benedetto's medical records in violation of Article I, Section 23 of the Florida Constitution. (Appendix to Petition for Writ of *Certiorari* at Tab 7). The privacy clause of Florida's Constitution provides as follows: "Every natural person has the right to be let alone and free from governmental intrusion into a person's private life except as otherwise provided herein." Art. I, § 23, Fla. Const. (1980). This provision was added by Florida's voters in 1980 and remains unchanged. ***Weaver v. Myers***, 229 So. 3d 1118, 1125 (Fla. 2017).

Florida's District Courts of Appeal have repeatedly held that an order which compels the production of medical records in violation of the privacy clause of the Florida Constitution imbues the District Court of Appeal with *certiorari* jurisdiction to immediately review the order at issue. ***Tanner v. Hart***, 313 So. 3d 805, 807 (Fla. 2d DCA 2021)("Because the order on review compels disclosure of confidential medical information, we are empowered to exercise *certiorari* jurisdiction."); ***Paylan v. Fitzgerald***, 223 So. 3d 431, 434

(Fla. 2d DCA 2017)("Orders that require disclosure of confidential medical information meet the irreparable harm requirement for *certiorari* review because once such information is improperly disclosed, the harm caused by that disclosure cannot be undone."); ***Sculley v. Shands Teaching Hospital and Clinics, Inc.***, 128 So. 3d 986, 988 (Fla. 1st DCA 2014)("Where, as here, an order permits discovery of medical or other records that are protected by constitutional or statutory privileges, this court has jurisdiction to review the order because the harm caused by the erroneous production of such records cannot be remedied on appeal.").

II. FACTS UPON WHICH THE PETITIONER RELIES

The underlying lawsuit was initiated with the filing of the Complaint on September 18, 2025, on behalf of SANDRA E. GONZALEZ REPOLLET, as Personal Representative of the Estate of ELIEZER GONZALEZ SALCEDO (the "Estate"). (Appendix at Tab 1). The Complaint alleges that Mr. Benedetto was driving a vehicle that

was leased by the co-Defendant below, UTZ QUALITY FOODS, LLC ("UTZ"), when he collided with a vehicle in which Mr. Gonzalez Salcedo was located, resulting in his death. (***Id.*** at pgs. 3 - 4). UTZ is alleged to have been vicariously liable for the negligence of Mr. Benedetto. (***Id.*** at pg. 4). Mr. Benedetto responded to the Complaint by filing an Answer and Affirmative Defenses on November 4, 2025. (Appendix at Tab 2). After the parties engaged in discovery, on June 17, 2026, Mr. Benedetto and UTZ filed an Admission of Liability. (Appendix at Tab 3).

Subsequent to the Admission of Liability, the Estate filed a Motion to Compel Production of Defendant Benedetto's Post-Crash Drug and Alcohol Test Results Over Defendant Benedetto's Objection, and Incorporated Memorandum of Law. (Appendix at Tab 4). The Estate's motion included as exhibits the product of discovery up to that point in litigation, including a Request and Response to Request to Produce (Exhibit A), Requests for Admissions (Exhibit B), and Mr. Benedetto's deposition transcript (Exhibit C). In addition, the

Estate included a series of photographs taken of the cab of the truck that Mr. Benedetto had been driving describing items labeled as "Drug Paraphernalia." (Exhibit D).

The Estate argued that the discovery rules of the state of Florida are liberally construed so as to allow a claimant discovery of evidence which appears to be reasonably calculated to lead to admissible evidence on the issue of punitive damages. (***Id.*** at pg. 5). The Estate argued that the post-crash testing is relevant to the issue of punitive damages. (***Id.*** at pgs. 5 - 9). The Estate further argued that the fact that Mr. Benedetto had invoked his Fifth Amendment privilege does not bar production of the records at issue, because the records were held by UTZ. (***Id.*** at pgs. 10 - 11). Finally, the Estate argued that Mr. Benedetto's privacy interest did not bar disclosure of this documentation. (***Id.*** at pg. 11).

On August 12, 2026, Mr. Benedetto filed his Response in Opposition to the Motion to Compel Production of Post-Crash Drug and Alcohol Test Results with Incorporated Memorandum of Law.

(Appendix at Tab 5). In his response, Mr. Benedetto emphasized that the production of the requested documents would be in violation of Mr. Benedetto's privacy rights. (***Id.***). Further, contrary to the impression that was created by the Estate's motion, the records at issue were not part of an on-site investigation at the scene of the accident or in the immediate aftermath of the accident, but rather are medical records from a test that was obtained five days after the accident occurred. (***Id.***).

Mr. Benedetto argued that there is no possibility that breaching Mr. Benedetto's right to privacy could possibly provide any information or documentation as to whether Mr. Benedetto was intoxicated at the time of the motor vehicle accident. (***Id.***). In fact, Mr. Benedetto had been evaluated by multiple law enforcement and emergency services personnel at the scene of the accident, and none of these personnel made any indication of suspicion that Mr. Benedetto was intoxicated or impaired at the time. (***Id.***).

No criminal charges have ever been brought against Mr. Benedetto, and the Traffic Homicide Report does not have any indication that Mr. Benedetto was intoxicated. (***Id.***). The report specifically states that the Florida Highway Patrol Trooper who interviewed Mr. Benedetto after the accident "did not observe any signs of impairment from [Benedetto] to indicate that he was under the influence of drugs or alcohol." (***Id.***).

Mr. Benedetto went on to argue that private health records from five days after the subject accident can have no relevance as to his physical state at the time of the accident. (***Id.***). Because there is no basis to support the violation of Mr. Benedetto's privacy rights, especially in a case where he had not placed his health or medical condition at issue, Mr. Benedetto argued that the motion to compel should be denied.

The hearing on the motion to compel went forward on August 17, 2026. (Appendix at Tab 6). At one point during the course of the

hearing, the trial court did question the relevancy of the information sought, stating:

> The Court: What about Mr. Spengler's argument that they don't – they're not reasonably calculated to lead to discovery of admissible evidence? I mean, I understand your point, Mr. Gonzalez, but I'm also trying to figure out how something that's done five days after the accident, how they're going to go back and be able to extrapolate that.

(***Id.*** at pg. 10).

Critically, at no point either prior to the hearing or at the hearing did the Estate present the lower tribunal with any evidence or expert opinion to support the claim that the results of a blood test performed five days after the motor vehicle accident would yield any relevant information regarding Mr. Benedetto's level of intoxication at the time of the accident.

Notwithstanding this absence of evidence or opinion testimony, toward the conclusion of the hearing, the court ruled as follows: "The Court: Okay. Because the discovery rules are so broad, I'm going to

grant the motion to compel, but that's going to be subject to a protective order." (***Id.*** at pg. 12). Counsel for Mr. Benedetto then suggested that the court perform an *in camera* inspection prior to compelling the production of these medical records, stating: "Mr. Spengler: Your Honor, what I would propose, I understand your ruling, is that they be provided to you and – you look them over and decide before ordering them to be given over." (***Id.*** at pg. 13). The trial court rejected this suggestion. (***Id.*** at pg. 14). The lower tribunal then entered the Order Granting the Motion to Compel Production of Defendant Benedetto's Post-Crash Blood Test Results on September 11, 2026. (Appendix at Tab 7). The instant petition is being timely filed on October 9, 2026.

III. NATURE OF THE RELIEF REQUESTED

Mr. Benedetto respectfully requests that this Court grant the instant Petition for Writ of *Certiorari*, quash the September 11, 2026 order of the lower tribunal, and direct the lower tribunal to enter an

order denying the Estate's Motion to Compel Production of Defendant Benedetto's Post-Crash Blood Test Results.

IV. LEGAL ARGUMENT

The September 11, 2026 order of the lower tribunal constituted a departure from the essential requirements of law because the trial court failed to balance the state's interest in fair and efficient resolution of disputes by allowing discovery against Mr. Benedetto's competing privacy interest. Compelling the disclosure of Mr. Benedetto's medical records when those records, of a blood test taken five days after the motor vehicle accident, can have no impact on the underlying litigation, constituted a departure from the essential requirements of law.

In order to be entitled to *certiorari* relief based upon the denial of the motion to compel at issue, Mr. Benedetto must establish three elements: (1) that the ruling departs from the essential requirements of law, (2) that the ruling will result in material injury for the

remainder of the case, (3) and that the material injury cannot be corrected on post-judgment appeal. ***Rodriguez v. Miami-Dade County***, 117 So. 3d 400, 404 (Fla. 2013); *quoting* ***Williams v. Oken***, 62 So. 3d 1129, 1132 (Fla. 2011). Mr. Benedetto has already established the jurisdictional component of the *certiorari* analysis in Section I, above. Now, Mr. Benedetto will explain how the trial court's order constitutes a departure from the essential requirements of law.

The Florida Supreme Court made it clear in ***Weaver***, *supra*, that "A patient's medical records enjoy confidential status by virtue of the right to privacy contained in the Florida Constitution." ***Weaver***, 229 So. 3d at 1126; *quoting* ***State v. Johnson***, 814 So. 2d 390, 393 (Fla. 2002). The Florida Supreme Court went on to explain in ***Weaver*** as follows:

> We have explained that the right to privacy in the Florida Constitution is broader, more fundamental, and more highly guarded than any federal counterpart:
>
> This amendment is an independent, freestanding constitutional provision which declares the fundamental right to privacy. Article 1, Section 23,

> was intentionally phrased in strong terms. The drafters of the amendment rejected the use of the words "unreasonable" or "unwarranted" before the phrase "governmental intrusion" in order to make the privacy right as strong as possible. Since the people of this state exercised their prerogative and enacted an amendment to the Florida Constitution which expressly and succinctly provides for a strong right of privacy not found in the United States Constitution, it can only be concluded that the right is much broader in scope than that of the federal Constitution.

Weaver, 229 So. 3d at 1125 – 1126; quoting ***Winfield v. Division of Pari-Mutuel Wagering***, 477 So. 2d 544, 548 (Fla. 1985).

The ***Weaver*** court went on to state: "The right of privacy ensures that individuals are able to determine for themselves when, how and to what extent information about them is communicated to others." ***Id.*** at 1126; *quoting* ***Shaktman v. State***, 553 So. 2d 148, 150 (Fla. 1989). The Second District Court of Appeal analyzed this issue in depth in ***Tanner***, *supra*. The ***Tanner*** court stated as follows:

> The next inquiry is whether the order departs from the essential requirements of law. Discovery orders requiring disclosure of claimed confidential information are reviewed with greater caution than those that are simply burdensome or costly due to

> overbreadth. And when personal medical records are sought, the state's interest in fair and efficient resolution of disputes by allowing broad discovery must be balanced against the individual's competing privacy interest to prevented undue invasion of privacy.

Tanner 313 So. 3d at 807. (Internal citation omitted). That is precisely where the lower tribunal departed from the essential requirements of law here, as there was no attempt by the court to balance these two competing interests.

The ***Tanner*** court then went on to state as follows:

> In this context, a trial court departs from the essential requirements of law by ordering production of medical records without inspecting the records in camera to prevent disclosure of information that is not relevant to the litigation.

Id. at 808.

As noted in the factual portion of the instant petition, the lower court did touch on the relevancy issue, but then failed to actually analyze the issue in the context of the underlying facts of the case. Critically, although counsel for Mr. Benedetto requested an in

camera inspection, the lower court failed to conduct one. (Appendix at Tab 7, pgs. 12 - 13).

"When a party challenges a discovery order concerning material to which the party asserts his or her constitutional right to privacy, the trial court must conduct an in camera examination to determine the relevance of the materials to the issues raised or implicated by the lawsuit. ***James v. Veneziano***, 98 So. 3d 697, 698 (Fla. 4th DCA 2012). The lower tribunal clearly failed to conduct an in camera inspection, and thus the departure from the essential requirements of law is obvious. However, a further examination reveals that the balancing test that the lower tribunal was compelled to perform can only result in the denial of the motion to compel, as Mr. Benedetto's medical records of a blood test taken five days after the motor motor vehicle accident in question cannot justify a violation of Mr. Benedetto's privacy rights.

The Second District Court of Appeal addressed a similar scenario in ***Barker v. Barker***, 909 So. 2d 333 (Fla. 2d DCA 2005). There, the Second District Court of Appeal stated as follows:

> When personal medical records are sought, the state's interest in fair and efficient resolution of disputes by allowing broad discovery must be balanced against the individual's competing privacy interests to prevent an undue invasion of privacy. By failing to provide for an in camera inspection of Hughes' medical records to prevent disclosure of information that is not relevant to litigation, the discovery order departed from the essential requirements of law.

Id. at 338.

See also ***Berkeley v. Eisen***, 689 So. 2d 789, 790 (Fla. 4th DCA 1997)("We grant the writ of *certiorari* and quash the trial court's discovery order because respondents failed to demonstrate a need for the discovery that outweighs the privacy rights of these nonparties."

Florida recognizes a very strong right to privacy even beyond that which is found in the Federal Constitution. The trial court was compelled to perform a balancing test between the state's interest in fair and efficient resolution of disputes against Mr. Benedetto's

competing privacy interest to prevent an undue invasion of privacy through the compelled disclosure of his medical records. The failure to perform this balancing test, or even to conduct an *in camera* inspection of the records at issue, constitutes a departure from the essential requirements of law. The trial court's September 11, 2026 Order Granting the Estate's Motion to Compel Production of Mr. Benedetto's Post-Crash Blood Test Results must therefore be quashed, with instructions to the lower tribunal to enter an order denying the motion to compel.

V. CONCLUSION

WHEREFORE, for the reasons stated above, Mr. Benedetto respectfully requests that this Court grant the instant Petition for Writ of *Certiorari*, quash the lower tribunal September 11, 2026 order, and instruct the lower tribunal to enter an order denying the motion to compel.

CERTIFICATE OF SERVICE

WE HEREBY CERTIFY that a copy hereof has been electronically filed via Florida ePortal on this 9th day of October, 2026, and served to all counsel on the attached service list via the means indicated therein.

CERTIFICATE OF COMPLIANCE

WE HEREBY CERTIFY that this document complies with the type/volume requirements of Florida Rules of Appellate Procedure 9.045 and 9.100. This document is prepared in Bookman Old Style 14-point font and contains 2,614 words.

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